

2. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNK A VS. TATILA DOWNING

FILED BY:

TENTATIVE RULING:

Plaintiff Jarzynka's motion for summary adjudication as to the partition cause of action is **GRANTED IN PART**. The Court enters an interlocutory judgment finding that Plaintiff and Defendant each own 50 percent of the property on Caitlin Court and that Plaintiff has a right to partition, subject to the buyout process in the Partition of Real Property Act. The parties shall follow the procedures in the Partition of Real Property Act, including redoing the buyout process now that the ownership interests have been determined.

MSA procedure

A plaintiff may move for summary judgment or adjudication if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can be granted only "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*See Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

"Plaintiff's *initial* burden of proof in moving for summary judgment, however, did not include disproving any affirmative defenses asserted by defendants. ... Code of Civil Procedure section 437c, subdivision (p)(1) provides a plaintiff meets the burden of showing there is no defense to a cause of action 'if that party has proved each element of the cause of action.' Upon meeting that burden, the burden shifts to the defendant 'to show that a triable issue of one or more material facts exists as to that cause of action *or a defense thereto.*' [Citation.]" (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564.)

Plaintiff's Motion

Plaintiff seeks summary adjudication of his partition cause of action for the Caitlin Court property.

A co-owner of property has an absolute right to partition unless barred by a valid waiver.

(Code Civ. Proc. § 872.710, subd. (b).) The trial court may grant summary judgment in a partition action and enter an interlocutory judgment directing partition of the property. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 498.) “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc., § 872.720 (a).)

The undisputed facts are that Plaintiff and Defendant took title to the property in 2020 as joint tenants. (Jarzynka dec. ¶¶2-5 and ex. 3.) In 2024, Plaintiff severed the joint tenancy. (Jarzynka dec. ¶¶6 and ex. 4.) The parties are currently co-equal owners of the property as tenants-in-common. (Jarzynka dec. ¶¶7.)

This evidence is sufficient for Plaintiff to meet his initial burden of showing he and Defendant each have a 50/50 ownership interest in the property. Further, as a co-owner of the property, Plaintiff has the right to a partition of the property. The Court finds that Plaintiff has met his initial burden on the motion for summary adjudication of the partition cause of action.

Defendant’s opposition

Defendant does not oppose Plaintiff’s three material facts. Instead, Defendant attempts to raise several affirmative defenses: estoppel, waiver, unclean hands and fairness.

Defendant argues that Plaintiff does not seek an order adjudicating any of Defendant’s affirmative defenses and that these defenses all require factual inquiries that must be tried to a jury. As an initial matter, Plaintiff was not required to defeat the affirmative defenses. (*Oldcastle Precast, Inc., supra*, 170 Cal.App.4th at 564.) Once Plaintiff provided evidence of his right to a partition, the burden shifted to Defendant to show that one or more of her affirmative defenses is supported by the evidence. She must explain how the evidence meets the elements for the affirmative defense.

As an initial matter, Plaintiff argues in reply that only waiver is a valid defense to a partition of concurrent interests in the property. “Except as provided in Section 872.730, partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver.” (Code Civ. Proc. § 872.710 (b).) “A co-owner of property has an absolute right to partition unless barred by a valid waiver. (Code Civ. Proc., § 872.710, subd. (b).) ‘[T]he right of partition may be waived by contract, either express or implied.’ [Citation.]” (*LEG Investments, supra*, 183 Cal.App.4th at 493.) Plaintiff points out that most of the cases cited by Defendant predated this statute, which was enacted in 1976.

As to waiver, “[w]aiver requires an existing right, the waiving party’s knowledge of that right, and the party’s ‘actual intention to relinquish the right.’ [Citation.]” (*Lynch v. California Coastal Com.* (2017) 3 Cal.5th 470, 475.) Defendants evidence shows that the parties had an understanding that Defendant could stay in the house if the parties’ relationship ended. Defendant also claims that Plaintiff promised to stay in their relationship. Assuming Defendants’ version of these events is true,

they do not show facts supporting waiver. There is no evidence that Plaintiff knowingly gave up his right to a half ownership interest in the property nor is there evidence that Plaintiff knowingly gave up his right to a partition of the property.

Given Code of Civil Procedure section 872.10(b), Defendant has not shown that estoppel or unclean hands are proper defenses to a partition action. Even if they were, these defenses fail on the merits.

As to the estoppel defense, it is not entirely clear if Defendant's argument is for equitable estoppel or promissory estoppel, however, the cases cited in the opposition are equitable estoppel cases. Defendant argues that "[a]ll that is required for an equitable estoppel is a 'serious change of position and 'unconscionable' injury. [Citation.]" (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1072.)

"A claim of equitable estoppel consists of the following elements: (1) a representation or concealment of material facts; (2) made with knowledge, actual or virtual, of the facts; (3) to a party ignorant, actually and permissibly, of the truth; (4) with the intention, actual or virtual, that the ignorant party act on it; and (5) that party was induced to act on it. [Citation.]" (*Joffe v. City of Huntington Park* (2011) 201 Cal.App.4th 492, 512-513; see also *Long Beach v. Mansell* (1970) 3 Cal.3d 462, 489.)

Defendant argues that estoppel applies here because she deposited all her income in the parties' joint account, let Plaintiff spend whatever he wanted, endured the physical and emotional toll of two rounds of IVF; and jointly acquired two properties (Caitlin Court) and the New Hampshire property. Defendant says that she would not have done any of these things if she knew that Plaintiff would unilaterally leave and then attempt to force the sale of Caitlin Court.

Defendant argues that Plaintiff knew that her children's wellbeing was important to Defendant and that they chose Caitlin Court because it was close to the children's school. She says that she relied on Plaintiff's commitment to their romantic partnership in her decision to jointly purchase a home with him, and had she known he would attempt to force her to sell her home and uproot her children, she would not have jointly purchased it with him. Defendant does not provide the ages for her children but states that one is in high school and the other in college. (Downing dec. ¶136.) Plaintiff testified that the two children were born in 2005 and 2007. (Jarzynka depo. 190:20-191:10.) Thus, the children are likely approximately 18 and 20 years old.

Defendant declares that she and Plaintiff "had a mutual understanding that [Defendant] would remain in possession of Caitlin Court, my home, if our relationship ended. [Plaintiff] and I had many conversations consistent with this understanding." (Downing dec. ¶134.) She also declares that these "assurances were given to assuage my concerns regarding what would happen if we broke up." (Downing dec. ¶134.) Plaintiff testified that he did not remember having conversations about what would happen if the parties broke up. (Jarzynka depo. 259:21-260:13.) Both parties confirm that they discussed what would happen if Defendant predeceased Plaintiff and Plaintiff promised to take care of

Defendant's children financially. (Downing dec. ¶34; Jarzynka depo. 206:6-207:10.)

As to the material representation that Plaintiff promised to never leave Defendant and he later decided to leave--that kind of representation does not show that equitable estoppel is a defense to determining the parties' ownership interest in the property. It is not a representation of fact, but instead a statement of future intent.

As to the evidence that the parties' understanding was that Defendant could stay in the home even if the parties' relationship ended, that is also not a statement of fact and thus, insufficient for equitable estoppel.

Further, to the extent Defendant argues promissory estoppel there needs to be a promise that is "clear and unambiguous in its terms." (*Joffe, supra*, 201 Cal.App.4th at 513.) The parties' understanding that Defendant could stay at the house does not provide evidence of clear and unambiguous terms of a promise because, among other things, it does not purport to specify for what length of time. And even if this promise were found to be sufficiently clear and unambiguous it does not address the parties' ownership interests in the property nor Plaintiff's right to a partition. The evidence here does not support equitable or promissory estoppel of the partition claim.

Defendant argues that the unclean hands defense is a fact question. It is true that the application of the unclean hands defense is generally a fact question and often not properly decided on a summary judgment motion. (See, *Mattco Forge, Inc. v. Arthur Young & Co.* (1992) 5 Cal.App.4th 392, 407.) Nonetheless, Defendant has the burden of providing facts showing that the unclean hands defense might apply. Without evidence that the unclean hands defense applies here, Defendant cannot use that defense to defeat summary adjudication.

As the application of the unclean hands defense, "the misconduct asserted in an unclean hands defense must be sufficiently related to the matter currently before the court." (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 680.) Here, Defendant argues that the unclean hands defense applies because of the Defendant's decision to create an embryo in reliance on Plaintiff's commitment to the relationship and Plaintiff's request for sole ownership of the New Hampshire property. The issue here is the ownership interest of the property on Caitlin Court. Neither the Embryo nor the New Hampshire property relate to ownership of the Caitlin Court property. The Court finds that Defendant has not presented evidence showing that unclean hands might apply here and therefore, has not met its burden on this affirmative defense.

The Court finds that Defendant has not shown there is a triable issue of material fact as to the parties' ownership interests or as to Plaintiff's right to a partition. And therefore, summary adjudication of the partition claim is granted.

Evidence

The Court grants Plaintiff's request for judicial notice of recorded documents and court

records.

The Court grants Defendant's request for judicial notice of court records.

The Court notes that Plaintiff's objections to evidence included objections to large amounts of texts. In that case if any portion of the chosen text is admissible, the Court will overrule the objection. The Court rules on the objections as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.

3. 9:00 AM CASE NUMBER: C24-02536
CASE NAME: ELIZABETH CARSON VS. RENAISSANCE RESIDENTIAL HOLDINGS, LLC
BE RELIEVED AS COUNSEL FOR PAKAN POURSAEID
FILED BY: POURSAEID, PAKAN
TENTATIVE RULING:

Micah A. Thompson and Tenant Law Group, PC ("Counsel") filed a Motion to be Relieved as Counsel on May 5, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on July 13, 2026. Thereafter, the motion was continued to September 28, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Pakan Poursaeid ("Client").

The supporting declaration filed by Counsel indicates that "[w]ithdrawal is required or permitted by California Rule of Professional Conduct 1.16(a) or (b)." See Declaration filed May 5, 2026, ¶12. Counsel's Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit an updated proposed order after hearing.